

Mrs E Nagamani vs Mr Venkatesh T G on 26 May, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.4840 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 26TH DAY OF MAY, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO.4840 OF 2017 (FC)
BETWEEN:

Digitally
signed by
RUPA V
Location:
High Court
of Karnataka

1. MRS. E. NAGAMANI
W/O MR. VENKATESH T.G.
AGED ABOUT 34 YEARS
RESIDENT OF MALAYAN00RU VILLAGE

KUNDURPI MANDAL
KALYANADURGA TALUK
ANANTHAPUR DISTRICT
ANDHRA PRADESH-515766.

...APPELLANT

(BY SRI. MALLESH L, ADV.,)
AND:

1. MR. VENKATESH T.G.
S/O MR. T.A. GOPINATH
AGED ABOUT 38 YEARS
RESIDING AT SRIVARI NILAYA
SRINIDHI LAYOUT
BEHIND NALANDA SCHOOL
TUMKUR-572102.

...RESPONDENT

(RESPONDENT SERVED)

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY COURT ACT, 1984, AGAINST THE JUDGMENT AND DECREE DATED 18.01.2017 PASSED IN M.C.NO.222/2015 ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT, TUMKUR, ALLOWING THE PETITION FILED UNDER SECTION 13(1)(i-a)(i-b) OF THE HINDU MARRIAGE ACT.

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THIS APPEAL COMING ON FOR FURTHER HEARING, THIS
DAY, ANANT RAMANATH HEGDE J., DELIVERED THE
FOLLOWING:

JUDGMENT

This appeal is by the wife, respondent in M.C.No.222/2015 on the file of Family Court at Tumakuru. Appeal is filed under Section 19(1) of the Family Courts Act, 1984.

2. For the sake of convenience, hereinafter, the parties to the proceeding are referred to as the husband and the wife.

3. The brief facts necessary for adjudication of the case can be summarized as under:

The marriage between the parties of the proceeding is solemnized on 17.04.2013. No children are born from the marriage. The husband contends that the wife stayed with him only for 3 months and thereafter, she voluntarily left the company of the husband and started staying apart. It is also his contention that during the period of stay, the wife was not properly taking care of the husband and was treating him with cruelty. The wife always insisted for a separate house and wanted to live in a society with lavish life style. The husband could not accede to her demand. It is the further case of the husband that his father is suffering from cancer and mother being aged is unable to look after his father and the husband was unable to stay away from the parents. It is further contended that the wife has filed a complaint on 04.10.2013 against the husband and his parents making false allegations that the husband and his parents are demanding dowry. The husband has further contended that the efforts made by the elders to bring in peace between the husband and wife has failed and he had filed a petition under Section 15 of the Hindu Marriage Act, 1955 seeking restitution of conjugal rights. It is the further contention that petition was allowed vide judgment and decree dated 22.09.2015 and the wife was directed to join the company of the husband. It is further stated that on 17.04.2015, husband issued a notice to the respondent through his lawyer requesting the respondent to join his company pursuant to judgment and decree passed in M.C.No.62/2014. Even to the said notice, there was no reply and the wife did not join the company of the husband. In the background of the aforementioned facts, the petition was filed seeking dissolution of marriage under Sections 13(1)(ia) and 13(1)(ib) of the Hindu Marriage Act, 1955 (Hereinafter referred to as 'Act of 1955' for short).

4. Wife contested the petition and denied the allegations leveled against her. It is the contention of the wife that the decree passed in M.C.No.62/2014 was an exparte decree where she was not served with a notice. Wife has also leveled allegations against the husband stating that husband and his

parents were insisting for dowry and were harassing and abusing her in filthy language. Wife further states that she is willing to stay with the husband and further filed petition under Domestic Violence Act against the husband.

5. Husband examined himself as PW-1 and 5 documents were marked. Wife has examined herself as RW-1 and two more witnesses as RW-2 and RW-3.

6. Heard the learned advocate appearing for the wife. The respondent - husband, though served, is not represented and is not before this Court.

7. Learned advocate for the wife would submit that the pleadings relating to cruelty and desertion are vague and do not specify the particular instances of cruelty. It is also contended that the necessary pleading to attract the ground of desertion as required under Section 13(1)(ib) of the Act of 1955 is not forth coming. He further submitted that the evidence is not led to prove the allegation of cruelty and desertion and it is also his contention that judgment and decree passed in M.C.No.62/2014 seeking restitution of conjugal rights is an exparte decree. Merely because there is a decree for restitution of conjugal rights in favour of the husband, which is passed exparte, it cannot be said that wife has deserted the company of the husband.

8. This Court has considered the contentions raised by the learned counsel for the wife.

9. We have considered the pleadings as well as the evidence placed on record with reference to well established principles governing pleading and proof of cruelty and desertion under the Act of 1955. The pleading relating to the alleged cruelty does not make reference to any specific instances of cruelty. The evidence also does not make any reference to specific instances of cruelty. The pleading relating to desertion does not confirm to the requirement under Section 13(1)(ib) of the Act of 1955. The learned counsel for the appellant - wife is right in submitting that the Family Court erred in granting the decree for dissolution of marriage on the ground of cruelty and desertion. The Family Court has not followed the well settled position of law in granting the decree for dissolution of marriage on the ground that cruelty and desertion. The pleading and evidence relating to cruelty and desertion placed before the Court cannot be considered as a valid pleading and evidence to hold that the husband has proved cruelty and desertion. The husband does not say that the wife has left the company of the appellant with an intention to put an end to the marriage relation two years prior to the petition. This being the position, this Court is unable to agree with the reasoning of the Family Court in granting the decree for divorce on the ground of cruelty and desertion.

10. It is required to be noticed that there is a decree for restitution of conjugal rights in favour of husband which is passed in M.C.No.62/2014 vide judgment and decree dated 22.09.2015. Though it is pleaded to be an exparte decree, the fact remains that the decree was brought to the notice of the wife by the husband when he issued a notice through his lawyer requesting the wife to join his company pursuant to judgment and decree referred to above. Despite decree being brought to the notice of wife, wife has not chosen to comply with the decree. The said decree for restitution of conjugal rights has attained finality as the wife has not chosen to contest the same. Merely because the decree is exparte, it cannot be said that it is not binding on the party to the proceeding. It binds

equally as a decree passed after the contest.

11. It is also required to be noticed that though the provision of Section 13(1A) of the Act of 1955 is not specified in the petition seeking dissolution of marriage, the husband has made out a case to grant a decree under Section 13(1A) of the Act of 1955. The paragraphs 8 and 9 would unmistakably reveal that husband has made out a case to grant divorce under Section 13(1A) of the Act of 1955 and in support of the said plea, he has also led evidence. The fact that the decree is passed in M.C. No.62/2014 referred to above is not in dispute. It is also forth coming from the records that the wife has not chosen to resume the martial relationship with the husband or to cohabit with the husband for more than one year after the said decree which was passed on 22.09.2015. The petition seeking dissolution of marriage is filed on 28.10.2015. Thus, the husband has established that wife has not cohabited with him or resumed conjugal relationship for more than one year after the decree.

12. It is equally well settled position of law that the omission to quote relevant provision of law is not a ground to refuse the relief. The only requirement is necessary pleadings and evidence must be on record. Said requirement is complied in this case. Hence, the husband is entitled to a decree for dissolution of marriage under Section 13(1A) of the Act of 1955 if not under Section 13(1)(ia) and (ib) of the Act of 1955.

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13. The decree granted by the Family Court under Section 13(1)(ia) and 13(1)(ib) of the Act of 1955 are set aside. However, marriage between the parties is dissolved on the ground enumerated under Section 13(1A) of the Act of 1955.

Accordingly, the appeal is disposed of.

Sd/-

JUDGE Sd/-

JUDGE RV/brn